

27. The persons now holding offices in said town shall continue to hold the same until their term of office shall expire under the old charter, and until their successors shall have duly qualified; and all laws and ordinances in force immediately before the passage of this charter for the government of this town, or affecting or relating to said town, so far as consistent herewith, and all rights, liabilities, actions, claims, contracts and prosecutions arising thereunder shall remain and continue as if this act had not passed.

28. All ordinances in force in said town not inconsistent with this act, the laws of this state and of the United States, shall be and remain in force until altered, amended or repealed by the council.

29. All acts and parts of acts in conflict with this act are hereby repealed.

30. This act shall be in force from its passage.

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CHAP. 746.—An ACT to provide for the method of voting by ballot.

Approved March 6, 1894.

1. Be it enacted by the general assembly of Virginia, That every elector shall vote by ballot.

2. Each person offering to vote shall deliver a single ballot to one of the judges of election in the presence of at least one of the other two judges.

3. The ballot shall be a white paper ticket, containing the names of the persons who have complied with the provisions of this act as hereinafter provided, and the title of the office printed or written as hereinafter provided. None other shall be a legal ballot.

4. Any person who intends to be a candidate for any office, state or national, to be elected by the electors of the state at large, or of a congressional district, shall, at least twenty days before such election, notify the secretary of the commonwealth, in writing, properly attested, of such intention, designating the office for which he be a candidate. Such written notice shall be signed by the said candidate, but if he be incapable of writing his proper signature, then some mark adopted by him as his signature shall be acknowledged before a justice of the peace or other officer authorized to take acknowledgments to deeds, and in the same manner. Any person who intends to be a candidate for any office not embraced in the foregoing at any election shall give a similar notice at least twenty days before such election to the clerk or clerks of the county or hustings courts of the various county or counties or the city or cities whose electors vote for the candidate for such office. No person not announcing his candidacy as provided for above shall have his name printed on the ballots provided for such election. On receipt of the foregoing notice it shall be the duty of the secretary of the commonwealth to immediately notify the secretary of each electoral board of each county or city of the state or of said congressional district.

5. It shall be the duty of the electoral boards of the several counties and cities within the state, within thirty days preceding each election, to cause to be printed a number of ballots equal to twice the entire registered vote of the said county or city. These ballots shall contain the names of all candidates complying with the provisions as above required, printed in black ink immediately below the office for which they have so announced their candidacy.

6. The printer with whom the board shall contract for the printing of the said ballots shall, before the work is commenced, take an oath before the secretary of said board, who is hereby empowered to administer said oath, to the following effect:

"I, ———, solemnly swear that I will print (here insert number) ballots, according to the instruction of the electoral board of the county (or city) of ———; that I will print and will permit to be printed, directly or indirectly, no more than the above number; that I will at once destroy all imperfect and perfect impressions; that as soon as said number of ballots is printed I will distribute the type used for said work; and finally, that I will not communicate to any one whomsoever, in any manner whatsoever, the size, style or contents of said ballots."

This oath shall be reduced to writing, and signed by the person taking it, and also a similar affidavit shall be required of any employee or other person engaged upon said work, or who shall have access to it, and any intentional violation of said oath shall constitute the crime of perjury. It shall be the duty of said board to designate one of their number to be continuously present in the room in which said ballots are printed from the commencement until the end of said work, and see that the undertakings of said oath are strictly complied with. For the faithful discharge of said duty he shall receive as compensation two dollars. As soon as said ballots are printed, they shall be securely wrapped and sealed, and such member of the electoral board shall take them into his exclusive possession, allowing no one to examine them; nor shall such member communicate to any one any information as to the size, style or contents of said ballots. He shall continue in such exclusive possession until he delivers said ballots to the electoral board as hereinafter provided. Any violation of the provisions of this section for which no punishment has been otherwise provided shall be deemed a misdemeanor, and punished by a fine of two hundred dollars and imprisonment for one month in jail.

7. It shall be the duty of the electoral board, as soon as possible after the passage of this act, to procure and adopt a seal, which may be changed from time to time in the discretion of said board, which said seal shall be not less than two inches in diameter. Said board shall meet as soon as convenient after the printing of the ballots, as provided in the preceding section, of which meeting the judge of the county or corporation court shall be notified, and at which there shall be present the said judge and the members of the said board, but no other persons. And said judge shall thereupon enter of record upon the minutes of the electoral board an affidavit stating

that said ballots were counted and sealed in his presence in the manner prescribed by law. At this meeting the member of the board who shall have secured from the printer the ballots, as required by the preceding section, shall deliver said ballots to said board. The ballots shall then be carefully counted by the said board, and entered by the secretary of the board in a book provided by him and kept for such purpose. The board shall affix its seal to every ballot printed as above provided, upon the side reverse from that upon which the names of the candidates appear. Of the said ballots they shall make as many packages as there are voting precincts in said county or city, one for each precinct, which package shall contain twice as many official ballots as there are voters registered at the precinct for which it is intended. Each of these packages shall be securely sealed so that the ballots shall be invisible, and so that they could not be readily opened without detection. Upon each of said packages shall be endorsed the name of the precinct for which it is intended and the number of ballots therein contained. The remainder of the ballots shall then be securely wrapped and sealed and kept securely by the said board. The said packages designed for the various precincts shall remain in the exclusive possession of the secretary of the board until delivered by him to the judges or judge of election of the precinct as hereinafter provided.

8. Before every election the secretary of the electoral board shall deliver to the judges or judge of election the package of official ballots for that precinct, taking a receipt therefor and a certificate that the seals appeared to be untampered with. Said sealed package, at the opening of the polls, shall be opened in the presence of the clerks of election and other judges present, and the ballots in said package shall then be carefully counted. All ballots remaining unused at the close of the polls shall be carefully destroyed before the box is opened. Any person willfully and corruptly failing to perform the duties required of him, or intentionally violating any of the provisions of this section, or opening any sealed package of official ballots, except as specially provided for herein, shall be deemed guilty of a misdemeanor and be punished with a fine of two hundred dollars and imprisonment one month in jail.

9. It shall be the duty of the electoral board of the several counties and cities to provide at each of the voting places in their respective counties and cities a small compartment or booth, large enough to contain and conceal from general observation a voter and a desk or other convenience for writing. In said booth there shall be placed pen and ink. Said compartment or booth shall be so erected that a person standing at said desk in said booth or compartment shall be wholly excluded from the observation of the clerks, judges of election and other persons. The said board, in its discretion, may have one or more of said booths at said voting places.

10. Except as hereinafter provided for, save the judges of election and clerks allowed by law, no person other than the elector offering to vote shall be within forty feet of the ballot-box. The judges of election shall promptly decide any dispute as to the precedence of electors to the right to vote, deciding who first offered; or, if two or

more offered at the same time, selecting the one to whom precedence shall be given; but in case of a challenge, the challengers and challenged and the witnesses may appear before the judges; when such challenge is decided only the elector having the right to vote shall remain within the prescribed limits.

11. Every elector qualified to vote at a precinct shall, when he so demands, be furnished with an official ballot by one of the judges of election selected for that duty by a majority of the judges present. The said elector shall then take the said official ballot and retire to said voting booth. He shall then draw a line with a pen or pencil through the names of the candidates he does not wish to vote for, leaving the name or names of the candidate or candidates he does wish to vote for unscratched. No name shall be considered scratched unless the pen or pencil mark extend through three-fourths of the length of said name, and no ballot save an official ballot above provided for shall be counted for any person. When, as to any office, more than one name remains unscratched the ballot for that particular office shall be void, but the ballot, as to any other office for which only one name remains unscratched, shall be valid. He shall fold said ballot with the names of the candidates on the inside and hand the same to the judge of election, who shall place the same in the ballot-box without any inspection further than to assure himself that said ballot is a genuine ballot, for which purpose he may, without looking at the printed inside of said ballot, inspect the official seal upon the back thereof: provided it shall be lawful for any voter to erase any or all names printed upon said official ballot and substitute therein in writing the name of any person or persons for any office for which he may desire to vote.

12. It shall be unlawful for any elector to carry the official ballot furnished him by the judge of election further than the voting booth, and should he, after inspecting said ballot, conclude not to vote, he must immediately return said ballot to the judges of election. Except as hereinafter provided, no person shall advise, counsel or assist any elector by writing, word or gesture, as to how he shall vote or mark his ballot after the same has been delivered to him by the judges of election. Any person violating the provisions of this section shall be deemed guilty of a misdemeanor, and, upon conviction thereof, shall be fined not less than five hundred nor more than one thousand dollars and confined in jail six months. To carry any official ballot beyond the voting booth or away from said booth, except to the judges of election or to vote any ballot except such as shall be received by the elector from the judge of election, shall be a misdemeanor punishable by a fine of one hundred dollars; and it shall be the duty of the judges of election to cause by verbal order or warrant the instant arrest of any person making such attempt, and he shall be required to vote or surrender said ballot, and he may be confined in jail, by the order of said judges of election, until he obeys said requirement, not exceeding ten days.

13. No elector shall be allowed by the judges of election to remain in said voting booth provided in this act more than two and one-half

minutes to the obstruction of other electors desiring to vote. Said judges of election shall cause any elector attempting to occupy said voting booth for a longer time to require and surrender his ballot, and he shall not again be allowed to receive an official ballot, unless in the discretion of the judges of election another opportunity to vote will not delay or hinder other electors.

14. Should any ballot be unintentionally or accidentally defaced, or in any way rendered unfit for voting by such elector, the elector shall deliver said defaced ballot to the judges of election and receive another upon taking an oath that the defacement of the ballot first delivered to him was not done for the purpose of defacing said official ballot. Any person swearing falsely to such fact shall be deemed guilty of perjury.

15. The electoral board of each county or city shall appoint for each voting precinct therein one special constable, who shall be an honest and discreet person of said precinct and be able to read and write, and who shall be a conservator of the peace, and shall be especially charged with enforcing the provisions of this act, having all the powers of a constable; and for such services he shall be allowed one dollar per day. He shall have the power of arresting, upon the verbal order or warrant of the judges of election, or a majority of them, of the precinct to which he is appointed, any person who is offending or attempting to violate any of the provisions of this act or disturbing the peace, and the person so arrested shall be taken as soon as possible before a justice of the peace having cognizance of the offence, and be then proceeded against under the general laws of the state. At the request of any elector in the voting booth who may be physically or educationally unable to vote, the said special constable may render him assistance by reading the names and offices on the ballot and pointing out to him the name or names he may wish to strike out, or otherwise aid him in preparing his ballot. In case said elector be blind, said special constable shall prepare said ballot for said elector in accordance with the instructions of said elector. Before entering upon the duties of his office the said special constable shall take an oath to faithfully perform the duties thereof, and for a corrupt violation of the same he shall be deemed guilty of a misdemeanor, and be fined not less than five hundred dollars and be imprisoned not less than one nor more than twelve months in jail.

16. It shall not be lawful upon the day of election for persons to congregate and crowd upon the public highways within one hundred feet of any of the voting places, and any person violating the provisions of this section shall, upon conviction thereof, pay a fine of twenty-five dollars or be confined in jail not exceeding ten days. Any member of the electoral board, the printer who shall print the official ballots provided for by this act, any judge of election, or any other person who shall give or sell to any person whomsoever, except where it is distinctly provided by this act, any official ballot or any copy, or any fac-simile of the same, or any information about the same, or shall counterfeit or attempt counterfeit the same, shall be deemed guilty of a misdemeanor, and, upon conviction thereof, shall be fined five hundred dollars and imprisoned in jail six months. It

shall be the duty of the judges of election to see that the provisions of this act are strictly carried out.

17. The said special constable may be removed by said electoral board or by said judges of election at their pleasure, and a successor for him may be appointed immediately. And when any such constable fails to attend punctually at the opening of the polls at any precinct, the judges of election at such precinct, or a majority of them, may select some qualified voter from those present, who, after taking an oath to be administered by one of the said judges to faithfully perform the duties of said office, shall have same powers to act and be under like penalties as said special constable appointed by said electoral board.

The secretary of said electoral board shall keep in his sole custody the seal or stamp of said board, and in a sealed package, to be opened only in the presence of the electoral board and the judge of the county or corporation court when in the discharge of their duty as prescribed in section seven aforesaid.

18. The cost of conducting an election under this act shall be paid by the supervisors out of the general county levy, and in cities by the council thereof.

19. All acts and parts of acts in conflict with this act or any section thereof are hereby repealed.

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CHAP. 747.—A JOINT RESOLUTION to provide for adjusting with the state of West Virginia the proportion of the public debt of the original state of Virginia proper to be borne by West Virginia, for the application of whatever may be received from West Virginia to the payment of those found to be entitled to the same.

Approved March 6, 1894.

Whereas the general assembly of Virginia is required by the constitution of Virginia to provide by law for adjusting with the state of West Virginia the proportion of the public debt of the original state of Virginia proper to be borne by West Virginia; and

Whereas the general assembly has heretofore passed four several acts in relation to the funding and settlement of her public debt, as follows, to-wit:

First. An act entitled an act to provide for the funding and payment of the public debt, approved March thirtieth, eighteen hundred and seventy-one.

Second. An act entitled an act to provide a plan of settlement of the public debt, approved March twenty-eighth, eighteen hundred and seventy-nine.

Third. An act entitled an act to ascertain and declare Virginia's equitable share of the debt created before and actually existing at the time of the partition of her territory and resources, and to provide for the issuance of bonds covering the same and the regular and prompt payment of interest thereon, approved February fourteenth, eighteen hundred and eighty-two; and